

Shiv Shankar Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 February 2023 · WRIT - C No. 4201 of 2023 · **Writ disposed after the impugned order was withdrawn.**

HEADNOTE

The writ challenging Purvanchal Vidyut Vitran Nigam Ltd.'s order dated 15.12.2022 was disposed of after the Nigam stated that the order had been withdrawn and that final assessment would be made under the Electricity Supply Code, 2005. The Court declined to proceed further and left the department to act in accordance with the Electricity Act and the Supply Code.

FACTUAL SUMMARY

Shiv Shankar Yadav petitioned the Allahabad High Court to quash an order dated 15 December 2022 of Purvanchal Vidyut Vitran Nigam Ltd. and to restrain coercive action. On 7 February 2023 counsel for the licensee took time for instructions. On 14 February 2023 counsel for the Nigam stated that the impugned order had already been withdrawn so the petitioner could be given another opportunity, and that final assessment would be made under the Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · UP-2005::Supply Code, 2005

writ closed after withdrawal and fresh assessment

HOLDING

Where the licensee states that the order dated 15.12.2022 has already been withdrawn to give the petitioner another opportunity and that final assessment will be made under the Electricity Supply Code, 2005, the High Court will not proceed with the writ. The department may proceed strictly in accordance with law and with the Electricity Act and the Electricity Supply Code, 2005. ¶ 2

FLAG No numbered clause is cited. The order names only the Electricity Supply Code, 2005 and the Electricity Act.

PRINCIPLE TAGS

writ-disposed-impugned-order-withdrawn Purvanchal Vidyut Vitran Nigam Ltd. having withdrawn the order of 15.12.2022 and undertaken to make a final assessment under the Electricity Supply Code, 2005, the writ for certiorari and against coercive measures was disposed without any decision on the assessment. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE LEGALITY AND QUANTUM OF THE FINAL ASSESSMENT STILL TO BE MADE UNDER THE ELECTRICITY SUPPLY CODE, 2005

The Court recorded the withdrawal and did not examine the order of 15.12.2022 or any fresh assessment on merits. ¶ 2